



City of Orinda Drainage/Grading Permit Process

Projects may require grading and/or drainage permits as follows:

Hillside grading permits are required from the City of Orinda Planning Department per Orinda Municipal Code (OMC) Section 17.7.7 if the project:

- ❑ Involves grading on a developed parcel on a significant ridgeline or hilltop or with an average slope of more than 15 percent AND the proposed grading would be over 30 feet from the footprint of the main residence.

Grading permits are required from the Contra Costa County Building Inspection Department (CCCBID) per OMC Section 15.36 if the project:

- ❑ Involves earthwork excavation of fifty (50) cubic yards or more.
- ❑ Creates a cut slope greater than seven feet in height and steeper than two horizontal to one vertical.
- ❑ Involves earthwork excavation that is more than five (5) feet in depth below natural grade.
- ❑ Involves earthwork fill of two hundred (200) cubic yards or more.
- ❑ Involves earthwork fill that obstructs a drainage course.
- ❑ Involves earthwork fill that is over three (3) feet in depth above natural grade.
- ❑ Involves earthwork fill that is placed on natural grade that has a slope steeper than five horizontal to one vertical.

Drainage permits (watercourse alteration permits) are required from the CCCBID per OMC Section 18.03 if the project:

- ❑ Impairs, impedes, redirects or otherwise affects the existing flow (permanent or intermittent) of stormwater or other water in a watercourse¹. Projects that entail installation of new drainage systems or modification of existing drainage systems are considered to affect the existing flow of stormwater.
- ❑ Constructs, alters or repairs a watercourse.
- ❑ Entails excavating, grading or otherwise altering the surface of land so as to affect the capacity of a watercourse.

¹ "Watercourse" means any natural or machine-made channel or other facility or structure for directing and transporting water, whether continuously flowing or intermittent, improved or unimproved. "Watercourse" includes but is not limited to a stream bed and the banks, drainage pipes and conduits, swales, ditches, washes, arroyos, dikes and retaining walls associated with the stream bed.

- ❑ Destroys or significantly alters vegetation at or near a watercourse, including without limitation cutting, clearing, grubbing, burning, removing, excavating or grading, except as is necessary to maintain or restore the hydraulic capacity of the watercourse or in compliance with riparian restoration requirements under this title.
- ❑ Impairs the use of an easement for drainage purposes.
- ❑ Installs or constructs a new structure or improve or expand an existing structure within or across a watercourse. The term "structure" shall include but is not limited to pipes, culverts, buildings, swimming pools, bridges, patios, paving, fences, retaining walls, poles and similar improvements.

Projects Requiring Discretionary Approval

Planning Department routes the following project types to Engineering Department for review:

- Plans requiring hillside grading permits
- Other discretionary projects that may require drainage or grading permits and/or special conditions of approval (new single family residences, additions to existing single family residences, slide repairs, projects located in creek setback, etc.)

Engineering Department completes project routing form and indicates whether drainage or grading permit will be required from the CCCBID. If required, a plan check form (attached) is also completed indicating the required items. Package is returned to Planning Department for transmittal to applicant within the time frame required by Planning Department.

After applicant has obtained discretionary project approval from the Planning Department, applicant returns to Planning Department for Building Permit approval. At that time, the Planning Department stamps approved plans "Drainage Permit Required" or "Grading Permit Required" as determined by Engineering Department.

Applicant then submits drainage and/or grading plan set to CCCBID. CCCBID Grading Inspector and City of Orinda Engineering Department conduct plan check and coordinate any necessary plan revisions with applicant. Plan check generally occurs within one week of submittal but may be greater if a site inspection is required or other extenuating circumstances.

Projects Not Requiring Discretionary Approval

City of Orinda Planning Department determines if project requires drainage or grading permit based on planning staff review or by routing to or coordinating with Engineering Department. Planning Department stamps approved plans "Drainage Permit Required" or "Grading Permit Required".

Applicant then submits drainage or grading plan set to CCCBID. CCCBID Grading Inspector and City Engineering Department conduct plan check and coordinate any necessary plan revisions with applicant. Plan check generally occurs within one week of submittal but may be greater if a site inspection is required or other extenuating circumstances.

Projects Creating or Replacing 2,500 Square Feet of Impervious Surface

As of December 1, 2012, projects that create or replace 2,500 square feet or more of impervious surface (roofs or pavement) must incorporate one or more specified measures to reduce runoff pollution. This requirement is mandated by the Municipal Regional Stormwater

Permit issued by the Bay Area Regional Water Quality Control Board. Drainage Permits will be required for such projects.

In addition to the standard requirements for drainage permits, applicants must complete a "Stormwater Control Plan for a Small Land Development Project", which entails providing a plan or sketch indicating the location of the runoff reduction measure selected, completing the Small Project Data Form for Stormwater Runoff Reduction, and completing the Runoff Reduction Measure Checklist. The Stormwater Control Plan shall be submitted and approved prior to Planning Department approval of the plans. The City of Orinda Engineering Department will help guide applicants through this process to achieve compliance by incorporating stormwater requirements into all small land development projects.